

Sony Meher vs Sujit Meher Opp. Party on 25 August, 2021

Author: K.R. Mohapatra

Bench: K.R. Mohapatra

IN THE HIGH COURT OF ORISSA AT CUTTACK

CMP NO. 424 OF 2021

Sony Meher

....

Petitioner

Mr. Trilochan Nanda, Advocate

-versus-

Sujit Meher

....

Opp. Party

CORAM:

JUSTICE K.R. MOHAPATRA

ORDER

Order No.

25.08.2021

2. 1. This matter is taken up through hybrid mode.

2. Heard Mr. Nanda, learned counsel for the Petitioner.

3. This CMP has been filed for a direction to the learned Civil Judge (Senior Division), Patnagarh for early disposal of MAT C.S. No. 49 of 2020.

4. From the order sheet annexed to the CMP as Annexure-2, it appears that the matter is not ready for hearing. It is, however, submitted by learned counsel for the Petitioner that the Defendant-Opposite Party is praying for repeated adjournments and the same has been granted by learned Civil Judge liberally and the Petitioner is made to suffer. It is further submitted by learned counsel for the Petitioner that while granting adjournments, learned Civil Judge should have taken into consideration the mandate of Section 21- B(2) of the Hindu Marriage Act, 1955.

5. Taking into consideration the submission of learned counsel for the Petitioner and the fact that the matter is not ready for hearing, this Court is not in a position to accede to the prayer of learned counsel for the Petitioner for a direction for early disposal // 2 // of the suit. It is, however, observed that Civil Judge (Senior Division), Patnagarh should not grant unnecessary adjournment.

6. Accordingly, this CMP is disposed of with a direction that in the event the Petitioner files an application for early disposal of MAT C.S. No. 49 of 2020 stating the grounds therein within a period of two weeks hence, learned Civil Judge (Senior Division), Patnagarh shall do well to consider the same in accordance with law and make an endeavour for early disposal of the suit, when the matter becomes ready for hearing and there is no legal impediment.

Urgent certified copy of this order be granted on proper application.

bks (K.R. Mohapatra) Judge